

Lumgair

v.

Lumgair

(Case No. 198561)

The matter is set for status conference regarding financial issues made part of the April 15, 2022, request for order. Both parties have filed income and expense declarations; however, Ms. Lumgair's shows zero income with the date of her last employment being 2015. Mr. Lumgair's responsive declaration suggests she is now earning \$2,480.00 per month. Assuming this information to be accurate, Ms. Lumgair is ordered to file a current income and expense declaration.

Assuming the parties believe orders can arise from the status conference, each party should come to court with a proposed calculation for support.

Putnam

v.

McDonald

(Case No. 198133)

Ms. Putnam has filed a request for order and served the same on May 19, 2022, via mail. Service appears untimely. California Code of Civil Procedure, section 1005, states:

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing.... However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by ... 10 calendar days if either the place of mailing or the place of address is outside the State of California but within the United States."

Mr. McDonald resides in Portland, Oregon. The required notice is insufficient to hear the matter on June 6, 2022. The Court continues the matter to June 20, 2022, at 10:00 a.m. in Dept. 11 for further proceedings on Ms. Putnam's request for order. Ms. Putnam shall give notice of the continued hearing date to Mr. McDonald.

Ross

v.

Ross

(Case No. 199141)

The matter is set for further proceedings on child custody recommended counseling and domestic violence restraining order. Mr. Ross has also filed a motion for child support, spousal support and attorney fees, which he served, via mail, on April 22, 2022. Ms. Ross has yet to file a responsive pleading or the necessary income and expense declaration.

The Court notes the proposed support calculation (Xspouse calculation) identifies Mr. Ross earning \$14,000 monthly with a net adjusted income of \$9,541.00; however, the income and expense declaration puts his income at zero. Assuming this is correct, the Court requests an amended proposed calculation be brought to the hearing on June 6, 2022.

As to the domestic violence restraining order and issues of custody and visitation, the Court will seek a status on all issues. The parties should come prepared to address whether a Family Code, section 3044 advisement has occurred and whether a hearing on the request for restraint should occur prior to deciding issues of custody and visitation.